LAF YOMI

Bekhorot 36 · October 24, 2026

ON TODAY'S DAF

Bekhorot 36: the עד מפי עד debate for bechor testimony (Rav Assi vs. Rav Ashi, and Mareimar's immortal nickname for Rav Yeimar), הפה שאסר הוא הפה שהתיר with the donkey-on-the-forbidden-road alibi, Rav Tzadok's wicker-basket bechor and his second opinion from Rabbi Yehoshua to Rabban Gamliel, the kohen's נאמנות via מילתא דעבידא לאגלויי (Reframe's weak-eyesight sting), and the 36b mishnayot — הכל נאמנים על מומי מעשר and three בני כנסת for an obvious mum in chutz la'aretz.

עד מפי עד · MAREIMAR'S NICKNAME FOR RAV YEIMAR



1. *Rav Yeimar ruled that עד מפי עד — hearsay testimony — is כשר for testifying about a bechor's mum. Mareimar called him: 'יימר שרי בוכרא' — 'Yeimar, the one who permits firstborns.'*

“Mareimar's verdict on the lenient psak, preserved in the Gemara itself: 'This יימר who is lenient in the הלכות of בכור.' Rav Yeimar got a title — and it stuck for two thousand years.”

— Rabbi Elefant

In the daf: Bekhorot 36a · קרי עליה מרימר: יימר שרי בוכרא · Hear it in the shiur: Rabbi Moshe Elefant · 6:41

הפה שאסר · THE ONE-WEEK-LATER WIFE



2. *The mishnah: a woman says 'אשת איש הייתי וגרושה אני' — I was married, now I'm divorced — and she's believed: הפה שאסר הוא הפה שהתיר. But what if she says 'אשת איש הייתי' today, and only comes back a week later to say 'גרושה אני'?*

“The poskim's answer turns on the mechanism: if הפה שאסר works as מיגו דאי בעי שתיק, the week-long pause doesn't matter; if it's about חזקות, once she established herself as married she can't undo it next Tuesday. The Gemara's own proof for the מיגו reading: the whole sugya hinges on whether the kohen could have stayed silent.”

— Rabbi Elefant

In the daf: Bekhorot 36a · הפה שאסר הוא הפה שהתיר — the אשת איש time-lag question · Hear it in the shiur: Rabbi Moshe Elefant · 13:20

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מה לי לשקר · THE DONKEY RENTER'S WATERLESS-ROAD ALIBI



3. A man rented a donkey with one rule: don't take the Nehar Pekod road — it's slippery and wet. He took it anyway, the donkey died, and he claimed: 'I did take that road... but there was no water on it, so the death was an אונס*.'*

“Rava: מה לי לשקר — why would he lie? He could have just said 'I took the safe road.' Abaye: not so fast — מה לי לשקר doesn't work במקום עדים, and everybody knows that road is wet. A technically creative alibi, legally dead on arrival.”

— Rabbi Elefant

In the daf: Bekhorot 36a · the donkey, the forbidden road, and מה לי לשקר · Hear it in the shiur: Rabbi Moshe Elefant · 14:58

חבר VS עם הארץ · THE ORIGINAL SECOND-OPINION SHOPPER



4. Rav Tzadok's bechor split its lip on a wicker basket. He asked Rabbi Yehoshua: is a חבר *trusted?* הן*.' Then — having already gotten his answer — he went and asked Rabban Gamliel the very same question.*

“Elefant: 'If he already got an answer, why are you going to Rabban Gamliel?' The Yaavetz: you don't second-guess a rav — unless the second one is the Nasi, where כבוד הנשיאות changes the rules. History's first recorded second-opinion shopper, with a technicality.”

— Rabbi Elefant

In the daf: Bekhorot 36a · Rav Tzadok asks Rabbi Yehoshua, then asks Rabban Gamliel anyway · Hear it in the shiur: Rabbi Moshe Elefant · 23:34

מילתא דעבידא לאגלויי · THE KOHEN'S WEAK-EYESIGHT GAMBIT



5. Refram gave his unblemished bechor to a kohen. The kohen blemished it, then waited for the day Refram's eyesight was weak to bring it for a ruling: 'בזה נתן לי ישראל במומו' — I received it from a Yisrael already blemished.

“Refram squinted his weak eyes open, looked, and caught him red-handed: 'לאו אנא דיהבתי לך? — Wasn't it ME who gave it to you?!' The whole scheme depended on Reframם not recognizing the animal he'd personally handed over unblemished. The Gemara's verdict: this one was just a חציף — a brazen individual; כולי עלמא לא חציפי.”

— Rabbi Elefant

In the daf: Bekhorot 36a · רפרם and the kohen who waited for a bad-vision day · Hear it in the shiur: Rabbi Moshe Elefant · 38:35